

February 23, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0002502 WELLS FARGO BANK, N.A. vs. JAMIE LAMOUREUX, an individual

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to file a request for default judgment despite the fact default was entered as requested over four (4) months ago. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420.

2. CL0002866 Velocity Investments LLC vs. Stephen Alter

Defendant's motion to vacate clerk's default judgment is denied.

The Court recognizes the strong policy which favors having cases decided on their merits; however, the Court can only grant relief from default if the defendant establishes proper grounds for relief. See, *Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.

At bar, the mandatory provision of Code of Civil Procedure § 473(b) is not available to Defendant as a pro per litigant. *Esther B. v. City of Los Angeles* (2008) 158 Cal.App.4th 1093, 1099.

In addition, Defendant fails to assert grounds upon which the Court could fashion discretionary relief. Defendant's belief his participation in the case negated the requirement to file an answer does not provide a basis for relief since ignorance of established law is insufficient under Code of Civil Procedure § 473(b). *Burnete v. La Casa Dana Apartments* (2007) 148 Cal. App. 4th 1262, 1267. Therefore, there are no cognizable grounds asserted upon which the Court can grant relief.

The Court notes there is no opposition to Defendant's motion. However, Defendant must still meet his burden of providing a basis upon which relief can and should be granted.

The Court notes Defendant has also not established a basis for relief under Code of Civil Procedure § 473(d) for improper service of summons. The signed Proof of Service, which shows the compliant and summons were personally served on Stephen Alter on June 25, 2025 at 2:32 p.m., establishes a presumption of the existence of the facts stated in the Proof of Service. Evid. Code § 647. Defendant has not submitted any evidence rebutting this presumption. *Palm Prop. Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.

Accordingly and upon the assertions contained in Defendant's declaration, the Court denies Defendant's Motion to Set Aside.